

Glasgow Corporation Order Confirmation Act, 1956

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CHAPTER Iviii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936 relating to
Glasgow Corporation. [5th July 1956.]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936 and it is requisite that the said
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Glasgow Corporation Order Short title.
Confirmation Act 1956.

SCHEDULE

GLASGOW CORPORATION

Provisional Order to amend the provisions of the Glasgow Police Act 1866 as to hackney carriages and the drivers thereof to extend the time for the compulsory purchase of lands for certain purposes by the corporation of the city of Glasgow to authorise the Corporation to borrow money for their tramway undertaking to make provision as to the powers of the Trustees of the Ure Elder Fund for Indigent Widow Ladies and for other purposes.

Whereas it is expedient that section 227 of the Glasgow Police Act 1866 which makes provision as to the area within which the drivers of hackney carriages may be required to carry passengers at the fares prescribed in pursuance of the said Act of 1866 should be amended as provided in this Order:

And whereas it was provided by section 6 of the Glasgow Corporation Order 1953 that the powers granted by that Order for the compulsory purchase of lands by the corporation of the city of Glasgow (hereinafter referred to as "the Corporation") for the construction of the sewer authorised by that Order should cease on the thirty-first day of December one thousand nine hundred and fifty-five and it is expedient that the said period should be extended as provided by this Order:

And whereas it is expedient that the Corporation should be authorised to borrow further money for the purposes of their tramway undertaking:

And whereas it is expedient that the provisions contained in this Order with respect to the Ure Elder Fund should be enacted:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title and citations.

1. This Order may be cited as the Glasgow Corporation Order 1956.

This Order and the Glasgow Police Acts 1866 to 1953 may be cited together as the Glasgow Police Acts 1866 to 1956.

This Order and the Glasgow Sewage Acts 1935 to 1953 may be cited together as the Glasgow Sewage Acts 1935 to 1956.

This Order and the Glasgow Tramways Acts 1905 to 1954 may be cited together as the Glasgow Tramways Acts 1905 to 1956.

This Order and the Glasgow Corporation Acts 1855 to 1955 may be cited together as the Glasgow Corporation Acts 1855 to 1956.

2. In this Order—

Interpretation.

“Corporation” means the Corporation of the city of Glasgow;

“Tramways Acts” means the Glasgow Tramways Acts 1905 to 1954;

“tramway undertaking” means the undertaking authorised by the Tramways Acts.

3.—(1) Section 227 (Penalty for not complying with preceding regulations, or refusing to carry at regular fares) of the Glasgow Police Act 1866 shall be read and have effect as if the words “within the city” were substituted for the words “not beyond Five Miles from the General Post Office of the City” occurring therein.

Amendment of section 227 of Glasgow Police Act 1866.

(2) For the purposes of the said section 227 of the said Act of 1866 as amended by this section “city” means the city and royal burgh of Glasgow as existing at the date of the passing of the Act confirming this Order.

4. The time limited by section 6 (Period for compulsory purchase) of the Glasgow Corporation Order 1953 for the compulsory purchase of lands for the construction of the sewer (Cambuslang Sewer) authorised by the said Order is hereby extended until the thirty-first day of December one thousand nine hundred and fifty-eight.

Extension of time for acquisition of lands for Cambuslang Sewer.

5.—(1) If any person being the owner or lessee of any land to which the last preceding section relates gives notice in writing to the Corporation of his desire that as soon as may be such land or his interest therein shall be acquired then the Corporation shall within a period of six months after the receipt of that notice either—

Power to owners and lessees to give notice as to purchase of land.

(a) enter into an effective contract with such person for the acquisition by agreement of such land or part of such land or his interest in such land or part thereof; or

(b) serve a notice to treat for the compulsory acquisition of such land or part of such land or of such person's interest in such land or part thereof; or

(c) notify their intention not to proceed with the purchase of such land or of such person's interest therein;

and if they fail to do so within the said period or if within the said period they notify their intention in accordance with the foregoing paragraph (c) the powers referred to in the last preceding section so far as they authorise the compulsory purchase of the land or the interest in land (as the case may be) to which the notice given by the owner or lessee relates shall cease.

(2) Where a notice to treat (whether relating to the whole or part of the land to which the notice given by the owner or lessee relates) is given in accordance with paragraph (b) of subsection (1) of this section then—

(a) if in pursuance of any statutory provision in that behalf the notice to treat is withdrawn the said powers so far

as they authorise the compulsory purchase of such land or (as the case may be) the interest therein of the person on whom the notice to treat was served shall cease;

- (b) if part only or such person's interest in part only of such land is acquired in pursuance of the notice to treat the said powers so far as they authorise the compulsory purchase of the remainder or (as the case may be) such person's interest in the remainder of such land shall cease.

Borrowing
for tramway
purposes.

6.—(1) The Corporation may borrow for the purposes of the Tramways Acts any sum of money not exceeding two million pounds in addition to (a) the sum of ten million six hundred and twenty-one thousand nine hundred and eighty-five pounds authorised to be borrowed by the Tramways Acts and (b) the sum of seventy-one thousand two hundred and eighty-one pounds nine shillings and nine-pence authorised to be borrowed by the Govan Burgh (Tramways) Act 1893 (the tramways belonging to the former burgh of Govan having been vested in the Corporation by the Glasgow Boundaries Act 1912) and they shall pay off all moneys so borrowed within the period of thirty years from the date of borrowing.

(2) If after having borrowed the said sum hereby authorised or any part thereof the Corporation pay off the same by other means than by sinking fund they may reborrow the same.

(3) The amount borrowed by the Corporation for the purposes of the tramway undertaking whether in exercise of their powers under the Tramways Acts and this Order or at common law shall not exceed in amount the total sum they are authorised to borrow by the Tramways Acts and this Order.

Saving for
control on
borrowing.

7. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946 or of section 259 of the Local Government (Scotland) Act 1947 as amended by subsection (1) of section 4 of the Local Government (Scotland) Act 1951.

Amendment of
Ure Elder Fund
Order 1906.

8. Whereas the indigent widow ladies connected with Glasgow or Govan to whom relief may be granted in terms of the Ure Elder Fund Order 1906 (in this section referred to as "the Order of 1906") and the trust deed therein referred to are by the said trust deed defined as those who have not an income of fifty pounds per annum And whereas by section 41 (Amendment of Ure Elder Fund Order 1906) of the Glasgow Corporation Order 1929 the said amount of fifty pounds was increased to one hundred pounds and the amounts of the annuities which may be granted were also increased And whereas it is expedient that the said amount of fifty pounds as increased by the said Order of 1929 should be further increased as provided in this section and for the avoidance of doubt it is also expedient that in computing the amount of income for the purposes of the Order of 1906 and the said trust deed charitable grants and pensions and similar payments should be left out of account And

whereas it is further expedient that the amounts of the annuities which may be granted by the trustees incorporated by the Order of 1906 should be increased as provided in this section: Therefore—

- (1) Notwithstanding anything in the Order of 1906 or the said trust deed or in the said Order of 1929—

(a) the said trustees shall have power to grant relief in terms of the Order of 1906 and the said trust deed to indigent widow ladies connected with Glasgow or Govan whose income does not exceed two hundred pounds per annum;

(b) in computing in the case of any widow the amount of her income account shall not be taken of any charitable grant or charitable pension received by or payable to such widow or any other such payment made to her:

- (2) Section 23 (Amount of annuities to be granted) of the Order of 1906 and section 41 (Amendment of Ure Elder Fund Order 1906) of the Glasgow Corporation Order 1929 are hereby repealed and the Order of 1906 shall be read and have effect as if the following section were substituted therefor as section 23 thereof:—

“Any annuity to be granted to a widow shall not be less than twelve pounds or more than one hundred pounds per annum or in the case of a widow living with a relative to whom an annuity is paid by the trustees less than ten pounds or more than ninety pounds per annum.”

9. The costs charges and expenses of and incident to the preparing Costs of Order.
for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and shall be allocated among the several undertakings and services of the Corporation in such proportions as the Corporation may deem expedient.

Table of Statutes referred to in this Act

Short title	Session and chapter
Glasgow Police Act 1866	29 & 30 Vict. c. cclxxiii.
Govan Burgh (Tramways) Act 1893	56 & 57 Vict. c. lxix.
Ure Elder Fund Order Confirmation Act 1906	6 Edw. 7 c. ccviii.
Glasgow Boundaries Act 1912	2 & 3 Geo. 5 c. xcv.
Glasgow Corporation Order Confirmation Act 1929	19 Geo. 5 c. ix.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Local Government (Scotland) Act 1947 ...	10 & 11 Geo. 6 c. 43.
Local Government (Scotland) Act 1951 ...	14 & 15 Geo. 6 c. 15.
Glasgow Corporation Order Confirmation Act 1953	1 & 2 Eliz. 2 c. ii.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 6d. net

(37610)

PRINTED IN GREAT BRITAIN